(40)

ZIMBABWE REVENUE AUTHORITY
v
(1) UNKI MINES (PRIVATE) LIMITED (2) STANBIC BANK ZIMBABWE LIMITED

SUPREME COURT OF ZIMBABWE
HARARE: 3 & 9 MARCH 2026 & 29 JUNE 2026

Miss *F. Chinwawadzimba*, for the applicant

M. Tshuma, for the first respondent

No appearance for the second respondent

IN CHAMBERS

MAVANGIRA JA:

1. This is an opposed composite application fronted by the description that it is a:

> "CHAMBER APPLICATION in terms of rule 50 (1) as read with rule 50 (3) of the Supreme Court Rules, 2025, for condonation of non-compliance with rule 76 (2), 44 (2) and rule 45 of the Supreme Court Rules, 2025 and for extension of time in which to make an application to reinstate appeal, serve and properly prosecute appeal and an application for reinstatement of appeal in terms of rule 76 (2) of the Supreme Court Rules, 2025 which was deemed abandoned and dismissed in terms of r 76 (1)." (*sic*)

2. At the onset of proceedings, Mr *Tshuma*, for the first respondent, raised two preliminary issues. In summary, the first was that the application was not properly before the court as it was predicated on an inapplicable rule. He also contended that the application erroneously seeks both reinstatement and extension of time to note an appeal, which relief is not sustained by the draft order sought. He submitted that this is a material defect which cannot be cured and for that reason the application ought to be struck off the roll with costs.

3. The second issue, which he submitted was dispositive of the matter, was that the applicant having filed a previous application on 5 November 2025 and thereafter a notice of withdrawal of the appeal, could not competently seek reinstatement. It was his argument that the notice of withdrawal is binding on the applicant, with the effect that it can no longer purport to relate to the withdrawn matter. On the basis of this point, he prayed that the application be dismissed with costs.

FACTUAL BACKGROUND

4. The applicant, Zimbabwe Revenue Authority (ZIMRA), is a body corporate duly established in terms of s 3 of the Zimbabwe Revenue Authority Act [*Chapter 23:11*]. The first respondent, Unki Mines (Pvt) Ltd, is a limited liability company duly incorporated in accordance with Zimbabwean law. The second respondent, Stanbic Bank Zimbabwe Ltd, is a bank registered in terms of the laws of Zimbabwe.

5. The first respondent made an application in the High Court, (the court *a quo*) seeking a *declaratur* that the applicant's decision to impose royalties on the applicant for tax years ending 2018 to 2021 be set side. The first respondent further sought that the applicant's imposition of a garnishee on the first respondent pursuant to notices issued on the applicant on 15 June 2022 be declared unlawful and that the applicant should bear the costs of the application on an attorney and client scale.

6. The court *a quo* heard the matter and issued an order to the effect that the applicant's decision to impose additional royalties on the first respondent at 100% for tax years ending 2018 to 2021 be set aside. The court *a quo* further declared unlawful, the applicant's imposition of a garnishee on the applicant pursuant to notices issued to the first respondent on 15 June 2022.

7. Aggrieved by the decision of the court *a quo*, the applicant filed an appeal before this Court under case number SC 639/25 on 15 August 2025. However, as it failed to serve the Registrar of the High Court as required by the rules, the appeal was deemed abandoned and dismissed for non-compliance with r 44 (2) of the Supreme Court Rules.

8. On 21 August 2025, the applicant filed an application for condonation and reinstatement of the appeal in SC 659/25. The application was struck off the roll for not stating the rule in terms of which it was brought. The applicant thereafter filed a hybrid chamber application in terms of r 76 (2) of the Supreme Court Rules, for condonation of failure to apply for reinstatement within time and for extension of time to do so, together with an application for condonation for failure to comply with r 44 (2) of the Supreme Court Rules and for extension of time to do so in case number SC 778/26. On 23 October 2025, MWAYERA JA rendered an *ex-tempore* judgment striking the matter off the roll on the basis that the appeal could not be reinstated, it being a nullity for failure to serve the Registrar. The reasons for the *ex-tempore* judgment were subsequently availed in *Zimbabwe Revenue Authority* v *Unki Mines (Pvt) Ltd & Anor* under judgment number SC 25/26.

9. In an attempt to start afresh, the applicant then withdrew the appeal in SC 639/25. The applicant then filed yet another application for condonation and extension of time within which to appeal in SC 887/25. It was heard by a different Judge who struck it off the roll. The applicant has now filed the current composite application seeking an order in the following terms:

> "**IT IS ORDERED THAT:**
>
> 1. The applicant's non-compliance with the Rules of this Honourable Court relating to the filing, service and prosecution of its appeal be and is hereby condoned.

2. The late filing of the applicant's application for reinstatement of its appeal be and is hereby condoned.

3. The applicant's appeal, previously noted under SC 639/25 and deemed dismissed and abandoned, be and is hereby reinstated.

4. The applicant be and is hereby granted extension of time within which to comply with the Rules of this Honourable Court relating to the service and prosecution of the appeal.

5. The applicant be and is hereby granted extension of time within which to serve the notice of appeal on the Registrar of the High court and on the respondents within ten (10) days of the granting of this order.

6. Costs of this application shall be costs in the appeal."

SUBMISSIONS BEFORE THIS COURT

10. Counsel for the first respondent raised two preliminary points which he believed were dispositive of the matter. These have been alluded to, in summary, in para 2 above. I now set them out in detail. Firstly, counsel for the first respondent argued that the application had been brought in terms of the wrong rule. Counsel submitted that the application seeks both reinstatement and an extension of time within which to note an appeal as reflected in the draft order. Counsel argued that these were two conflicting reliefs. Secondly, counsel argued that the applicant unilaterally elected to withdraw its notice of appeal under case number SC 639/25. The effect of this being that there was nothing for the Court to reinstate. Counsel argued that a withdrawal is a procedural act in litigation that cannot simply be disregarded. In support of this counsel relied on *Blue Rangers Estates (Pvt) Ltd* v *Muduviri* 2009 (1) ZLR 368 (S) and *Mutasa & Anor* v *The Registrar of the Supreme Court & Ors* SC 27/18.

11. In response, Ms *Chinwawadzimba*, for the first respondent, submitted that the appeal, having been deemed abandoned and dismissed, r 76 (2) is clear that the remedy is to seek

reinstatement. She argued that the first respondent's contention that the present application is incompetent by reason of the withdrawal of the appeal under SC 639/25 was both legally unsound and contextually incomplete. It was her argument that the purported withdrawal occurred after the Court before which the appeal was set, had indicated that the appeal was a nullity owing to the failure to serve the Registrar of the High Court. She contended that the withdrawal was not an abandonment of a valid and subsisting appeal. Furthermore, that a matter that had already been deemed abandoned and dismissed could not, in law, be withdrawn. She accordingly submitted that the purported withdrawal was of no legal force or effect.

12. In response to the second preliminary point raised, counsel for the applicant submitted that where an appeal has been deemed abandoned by operation of r 76 (1), reinstatement under r 76 (2) remains the procedural mechanism contemplated by the Rules. The hybrid application specifically seeks condonation for the late filing of reinstatement and reinstatement itself. The relief sought is therefore legally cognizable and competent.

13. Following the conclusion of argument on the preliminary points, the reasons for the *ex-tempore* judgment delivered by MWAYERA JA were availed. Counsel were directed to file supplementary heads of argument addressing the effect of that judgment on the present application.

14. The applicant's position as expressed in the said supplementary heads of argument is that once an appeal is deemed abandoned and dismissed under any provision of the Rules, the procedural consequence is uniform, unambiguous and unequivocal, namely that the aggrieved party's remedy is to approach the Court for reinstatement. It was further contended that r 76

is couched in general and unqualified terms and applies to "any provision of these rules" under which an appeal is deemed abandoned and dismissed. The language, it was argued, admits of no exception.

15. It was further submitted on behalf of the applicant that the reasoning to the effect that r 76 does not apply to appeals deemed abandoned for non-compliance with r 44 (2) introduces a distinction not borne out by the text of the Rules. It was argued that such an interpretation unduly narrows the scope of r 76 and undermines its plain wording, which was deliberately framed in broad and inclusive terms. The applicant maintained that it had, in the present matter, adhered strictly to the procedural mechanism prescribed by r 76.

16. For the first respondent, in para 5 of the supplementary heads of argument filed on its behalf, it is submitted that the parties are agreed that the proper application for the applicant to make in this case is an application for reinstatement. It is also submitted that the first respondent's challenge to the application is twofold. Notably, the twofold challenge has already been captured in paras 2 and 3 above. The contention is also made that the judgment by MWAYERA JA in SC 25/26 "whilst of academic relevance has been overtaken by events", given the most recent order in SC 887/25 "directing that the applicant should seek reinstatement of their appeal as the correct remedy for the deemed abandonment and dismissal of their appeal." It is further stated in para 9: "In very limited defence of the applicant, they were duty bound to comply with the order …" I venture to mention at this stage that the order in SC 887/25 merely states:

> "The matter be and is hereby struck off the roll with costs."

No further pronouncement is made therein.

17. Further, commenting on the judgment by MWAYERA JA, counsel for the first respondent argued that the learned Judge did not consider several pertinent cases and factors that are relevant to this matter. In this regard reference was made to the cases of *Gazi* v *Mbalabala*, SC 24/23, *Vanledge* v *Chemical Procurement Services Africa* SC 5/24. Counsel maintained that r 76 is peremptory and that it regulates all appeals that have been deemed abandoned and dismissed, that it does not regulate some, or most, but all, including the applicant's appeal that has been deemed abandoned and dismissed. He also submitted that what has caused the applicant to make the applications that it has up to the instant one, is the exercise of powers under the Rules by the registrar, to deem the applicant's appeal abandoned and dismissed in terms of r 44 (2). In this regard he cited the case of *Mutasa & Anor* v *The Registrar of the Supreme Court & Ors* 2018 (1) ZLR 461 (S) as spelling out the powers of the registrar.

18. Regarding the effect of the applicant's notice of withdrawal of the appeal, counsel for the first respondent argued that the applicant filed a valid notice of withdrawal and tendered costs as provided for by the Rules. Counsel submitted that the notice has binding legal effect and the applicant cannot simply ignore it. Furthermore, the applicant had not sought the setting aside of the notice of withdrawal and as such, it remains operative and binding.

ISSUES FOR DETERMINATION

19. The first issue for determination is whether the present application is properly before this Court, having regard to the alleged withdrawal of the appeal and its legal effect, if any. If the Court finds that the application is properly before it, the second issue for determination is whether the application has been brought in terms of the correct procedural provisions of the Supreme Court Rules and is therefore competent.

APPLICATION OF THE LAW TO THE FACTS

20. It is apparent from the record that the appeal was struck off the roll on account of it having already been deemed abandoned and dismissed by operation of r 44 (3), consequent upon it not having been served on the Registrar of the High Court. The legal consequence of such a deeming provision is that the appeal was procedurally terminated by force of the Rules themselves, independent of any election by the applicant.

21. In the given circumstances, the subsequent filing of a notice of withdrawal cannot, at law, alter the procedural status already created by operation of r 44 (3) of the Supreme Court Rules. The withdrawal, even if accepted at face value, could not have withdrawn that which had already ceased to exist as an active appeal process. It follows that the first respondent's reliance on the withdrawal as a bar to reinstatement is misplaced. The withdrawal is therefore not a bar to the applicant instituting other processes.

22. On the issue of whether the present application is brought in terms of the correct rule, this Court has already pronounced itself. In *Zimbabwe Revenue Authority* v *Unki Mines (Pvt) Ltd & Anor* SC 25/26 at p 8, MWAYERA JA enunciated as follows at paras 18 - 23:

> "18. In *Plumed Horse (Pvt) Ltd & Ors* v *Dundurn (Pvt) Ltd & Ors*, *supra* on pp 4-5 MATHONSI JA succinctly made the following pertinent remarks:
>
> > 'I do not agree. In fact, I agree with Mr *Nkomo* for the respondent that, where an appeal has not been properly instituted, there cannot be any appeal to reinstate. In those circumstances the proper approach would be to seek condonation and extension of time within which to note a proper appeal.
> >
> > In terms of r 37 (1) every civil appeal shall be instituted in the form of a notice of appeal which complies with the requirements set out therein. Subrule (2) requires the notice of appeal to be served on the Registrar as well as the respondents. Therefore, for a valid appeal to exist there must be compliance with the requirement for service of the notice aforesaid. Anything short of that is fatal to the appeal to such an extent that there would be no appeal.

> The position of this Court has always been that a notice of appeal is only a valid one if it complies with both r 37 and r 38. These rules are an integral part of the process of noting an appeal. When the notice fails to comply with the rules in the process of noting it, that appeal is said to be defective. A defective appeal is a nullity and where something is a nullity it is taken as though nothing is before the court.'

19. The Court proceeded to make the following apposite pronouncements:

> 'To the extent that it has been suggested on behalf of the applicants that this jurisprudence has been altered by the introduction of r 70 (3) of the current Supreme Court Rules, 2018, I respectfully disagree. Rule 70 (3) should be understood in proper context. It applies to valid appeals as opposed to defective ones.
>
> Indeed, this Court has already pronounced itself on the effect of the current rules in the case of *Ringsilver Enterprises (Pvt) Ltd & Ors* v *Zimbabwe Tourism Authority & Anor* SC 64/20. It is a judgment which was decided in terms of the current rules. Commenting on the application of r 37 (2) the court said:
>
> > 'The applicant's omission to serve the High Court Registrar with the notice of appeal rendered the appeal void *ab initio*.'
>
> The legal position that if a notice of appeal has not been served on the respondents as provided for in the rules, it is defective has not been changed by the current rules. It is a point which should have been conceded by the applicants. For Mr *Zhuwarara* to insist that an appeal dead in the water was capable of revival by an application for reinstatement was not helpful.'

20. It is common cause that r 70 of the 2018 Supreme Court Rules was repealed and replaced by r 76 of the Supreme Court Rules, 2025 without alteration of the content. The pronouncement by this Court on r 70 in the *Plumed Horse* case *supra* apply with equal force to r 76. Rule 76 (2) **only applies when the appeal that has been deemed abandoned and dismissed is valid**. In view of the cited authority, when an applicant fails to serve the Registrar of the court *a quo* or the respondents with the notice of appeal, there is no valid appeal and, as such, the purported notice of appeal is void *ab initio* or *nullum et est ab initio*. As such, it is a nullity, which cannot be cured. Such a notice of appeal cannot be reinstated for a nullity cannot be reinstated. (My emphasis)

21. In *Yunus Ahmed* v *Docking Station Safaris (Pvt) Ltd* t/a *Cc Sales supra*, this Court again clearly pronounced itself on the fate of an invalid notice of appeal when it stated the following:

> 'In *Econet Wireless (Pvt) Ltd* v *Trustco Mobile (Proprietary) Ltd & Anor* SC 43/13, GARWE JA stated as follows:

> 'The position is now well established that a Notice of Appeal must comply with the mandatory provisions of the Rules and that if it does not, it is a nullity and cannot be condoned or amended. See *Jensen* v *Acavalos* 1993 (1) ZLR 216 (S).'

The Notice of Appeal that the applicant seeks of reinstatement is therefore a nullity. A nullity cannot be reinstated, it is dead at law and hence it cannot be resuscitated by means of an application for reinstatement of an appeal. This point was clearly made in *Bindura Municipality* v *Mugogo* SC 32/15 where GUVAVA JA stated that:

> 'It however seems to me that the applicant has filed a wrong application. Where a matter has been struck off the roll because it has failed to comply with the rules of court, one cannot simply apply for reinstatement of the appeal as such an appeal is a nullity. This position has been stated in a number of decisions of this Court.
>
> In view of the above, it is clear that the applicant has approached this Court with a wrong application. The circumstances of this case require the applicant to make an application for condonation for non-compliance with the rules and extension of time within which to file and serve a Notice of Appeal. This, the applicant failed to do. The net effect of bringing a wrong application before the court is that there will be virtually nothing placed before it, and, to that end, this application cannot stand.'

22. It is worth noting that these cases and the principles emanating from them were brought to the attention of Mr *Kachambwa* as a way of having him align the facts of the present case to the legal realities and assist the applicant accordingly. Counsel was however, adamant and persisted in his erroneous view that the application was properly before the Court, in total disdain of the rules of this Court and precedent.

23. Based on the admitted failure to serve the notice of appeal on the High Court registrar, a peremptory requirement for lodging a valid appeal, the purported appeal being a nullity cannot be reinstated.'"

23. The import of the judgment by MWAYERA JA in *Zimbabwe Revenue Authority* (*supra*) is that r 76 (2) of the Supreme Court Rules, is not a general curative provision capable of reviving every form of procedural default or defect. Properly construed, the rule operates only in respect of appeals that are validly before the Court, but which have lapsed or been deemed abandoned and dismissed through procedural default, capable of cure by reinstatement upon

good cause shown. A nullity, by its very nature, cannot be resuscitated through reinstatement proceedings, as reinstatement presupposes the existence of a valid appeal capable of revival.

24. In *Vanledge Investments (Pvt) Ltd* (*supra*) the following was stated:

> "18. Of course, KORSAH JA was correct in *Jensen* v *Acavalos (supra)* when he remarked that a notice of appeal which does not comply with the rules is fatally defective and invalid and a nullity at law. In this case the applicable Supreme Court Rules, 2018 decree that where an appeal is deemed to have lapsed, the appellant is obliged to apply for reinstatement of the appeal in terms of r 70. The rule is cast in peremptory terms admitting no other procedural avenue as it guides litigants to the appropriate relief.
> …
> 20. When a matter is deemed dismissed that brings the case to an end and the court becomes *functus officio*. Such a case cannot be resuscitated and resurrected through r 43 (1) because the rule is not designed for that purpose. The appeal deemed abandoned and dismissed can only be brought back to life through r 70 which is specifically designed for the purpose."

From my reading of the judgment, the resuscitation and resurrection referred to does not seek or purport to breathe life into a fatally defective notice of appeal. In my view, this refers and applies to appeals that may be afflicted with non-fatal defects.

25. In the *Mutasa* case (*supra*) the following was stated at p 464 B-C:

> "From the above, it is clear that the registrar provides a full range of administrative and support services to the Judges by managing cases coming to court. However, he or she can also perform quasi-judicial functions but only in limited circumstances that are prescribed by statute. An examination of the Supreme Court Act and Rules clearly illustrates that it is not one of the functions of the registrar to decline a notice of appeal which has been filed in time. Where a notice is defective for whatever reason it is for the court seized with the matter to make such a determination."

The court continued at pp 465C-D:

> "It should be noted that once a notice of appeal has been filed with the registrar of this Court, the appeal is, from that point, pending before the Supreme Court.
>
> In my view once the second respondent filed the notice of appeal within the prescribed time, it ceased to be an issue upon which the registrar's decision could be questioned or one where a single judge of the Supreme Court could declare a nullity.

> …
>
> … it should be stressed that once a matter has been filed with the registrar only that court can remove it from the roll on the basis that it does not comply either with the rules of the court or a statute."

It is not clear how this case, cited by the applicant, impacts on the contentious issue herein, to wit, whether by seeking reinstatement, the applicant has filed the correct application. In other words, whether it was competent for the applicant to file this application on the facts of this matter.

26. The appeal *in casu* was deemed abandoned and dismissed by operation of law. It is trite law that a nullity cannot be reinstated. The principle is basic and has been enunciated upon by this Court. By logical deduction, its effect cannot be overridden by the agreement of the parties that this application is the correct application for the applicant to make.

27. It is important to highlight that *Gazi* v *Mbalabala*, (*supra*), which was also cited by the first respondent's counsel as supporting the proposition that r 76 (2) is all encompassing with regards to appeals that are deemed abandoned and dismissed in terms of any provision of the Rules, is patently distinguishable. The appeal therein was not a nullity. The non-compliance related to the non-payment of security for costs as required by r 55 (2) of the former Supreme Court Rules, 2018.

28. The present application is, in substance and effect, the same application that previously was before MWAYERA JA under SC 778/25. It raises no materially distinguishable issues and seeks substantially identical relief premised on the same procedural foundation. It therefore suffers the same legal fate as determined in that matter. The reasoning adopted therein is binding and dispositive of the present application, particularly in relation to the legal effect of non-

compliance with r 44 (2) and the consequent unavailability of reinstatement under r 76 (2) of the Supreme Court Rules.

29. The application is not properly before this Court. It is accordingly ordered as follows:

"The matter be and is hereby struck off the roll with costs."

Sinyoro & Partners, applicant's legal practitioners.

Gill, Godlonton & Gerrans, 1st respondent's legal practitioners.